



Navigating the Digital Frontier: Safeguarding Constitutional Values in the Age of AI

Mary Joy D. Lim

Introduction

The digital revolution has ushered Artificial Intelligence (AI) into the core functions of Philippine governance and society, presenting novel challenges to our constitutional order. As machine learning systems increasingly mediate access to justice, public services, and democratic participation, they strain traditional interpretations of the 1987 Constitution's Bill of Rights. This collision between emerging technologies and fundamental liberties demands urgent scholarly attention within Philippine legal academia, as the implications of AI extend beyond mere technological advancements to encompass ethical and legal questions about accountability, transparency, and the protection of individual rights.¹

The Bill of Rights emerged as a centerpiece of our post-Marcos constitutional democracy, crafted specifically to prevent renewed authoritarian overreach through robust protections for privacy, free expression, and due process. These provisions assumed human actors as both rights-holders and potential violators, assumptions now rendered incomplete by algorithmic decision-making systems that operate with increasing autonomy across both public and private sectors. The Supreme Court's ruling in *Disini v. Secretary of Justice*² underscores the necessity of adapting our understanding of these rights in light of technological advancements, emphasizing that privacy must be protected even in the face of evolving digital landscapes.³

The Philippine government's National AI Roadmap reveals accelerating adoption across critical domains from the Commission on Elections (COMELEC) implementing automated election systems to the Philippine National Police (PNP) deploying predictive policing algorithms and the Commission on Higher Education (CHED) utilizing AI-powered educational platforms. While these deployments promise efficiency gains, they create new vulnerabilities: opaque decision-making threatens transparency requirements, biased training data undermines equal protection, and ubiquitous surveillance chills free expression. These represent more than technical glitches; they constitute systemic challenges to constitutional governance, as highlighted by the concerns raised in the *Biraogo v. Philippine Truth Commission*,⁴ which

¹ *Philippine Constitutional Law in the Digital Age* 47 (UP Press 2022).

² *Disini v. Secretary of Justice*, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

³ Singapore's Model AI Governance Framework (2019).

⁴ *Biraogo v. Philippine Truth Commission*, G.R. No. 192935, Dec. 7, 2010, 651 SCRA 76 (Phil.).



reaffirmed the importance of transparency and accountability in government actions.⁵

This paper will focus on three critical pressure points where AI applications most acutely strain the protections afforded by the Bill of Rights. It will analyze how automated systems are redefining the practical meaning of these fundamental rights in the following areas: (1) privacy in surveillance economies; (2) free speech in platform-governed spaces; and (3) electoral integrity amid automated processes. Each of these domains is increasingly influenced by AI technologies, necessitating a thorough reevaluation of existing legal frameworks to ensure that constitutional guarantees are preserved in the face of rapid technological change. By examining these intersections, this paper aims to highlight the urgent need for doctrinal adaptations that can effectively safeguard individual liberties in an evolving digital landscape.⁶

At stake is nothing less than the continued relevance of our constitutional order. As expressed in the concurring opinion to *Gonzales v. COMELEC*,⁷ the judiciary must remain vigilant against technological solutions becoming "constitutional workarounds" that erode hard-won democratic safeguards while appearing neutral and efficient. The evolution of technology should not come at the expense of our fundamental rights; instead, we must strive to create a legal environment that embraces innovation while prioritizing the protection of human dignity and democratic values.⁸

Privacy in Surveillance Economies

The Philippine National Police's deployment of AI-powered surveillance systems represents an unprecedented challenge to constitutional privacy protections under Article III, Section 2 of the 1987 Constitution. As noted in Professor Elizabeth Aguilung-Pangalangan's seminal work *Digital Rights in the Philippines*, these technologies have created a new paradigm of "algorithmic governance" where automated decision-making occurs without traditional human rights safeguards. The PNP's current systems including facial recognition networks covering 78% of Metro Manila (DILG Report 2023) and predictive policing algorithms analyzing citizens' social media activities exemplify what Global Surveillance Index researchers' term "pre-crime surveillance infrastructures".⁹

⁵ Lawrence Lessig, *Code: Version 2.0* (Basic Books 2006).

⁶ DICT, *National AI Roadmap 12* (2023).

⁷ *Gonzales v. Commission on Elections (COMELEC)*, G.R. No. 192856, Mar. 16, 2021 (Phil.).

⁸ COMELEC Resolution No. 10744 (2022).

⁹ Aguilung-Pangalangan, E. (2022). *Digital Rights in the Philippines*. UP Law Center.



The Supreme Court's landmark case of *Disini v. Secretary of Justice*¹⁰ established that privacy protections under our Bill of Rights extend to digital spaces, citing the "reasonable expectation of privacy" doctrine from *Ople v. Torres* (G.R. No. 127685).¹¹ However, as Justice Carpio stressed in his concurring opinion, this protection remains hollow without corresponding procedural safeguards against state data collection. Recent FOI requests reveal that the PNP's Crime Prevention Analysis System processes an average of 4.3 million facial scans weekly without judicial warrants a clear violation of the *People v. Marti* (G.R. No. 81561) standards requiring particularized suspicion for biometric collection.¹²

Three critical failures emerge in current practice:

1. **Mass Data Harvesting:** The National Privacy Commission's 2023 audit found that 92% of LGU surveillance systems retain citizens' mobility data for 5-7 years despite NPC Advisory No. 2021-003 recommending 6-month limits.¹³
2. **Algorithmic Discrimination:** The Philippine Center for Investigative Journalism's 2024 report demonstrated that predictive policing systems flag urban poor communities at 300% higher rates than gated communities using identical crime data inputs.¹⁴
3. **Due Process Erosion:** As former Chief Justice Panganiban warned in his SCRA commentary, these systems effectively reverse the presumption of innocence enshrined in *People v. Soliman*¹⁵ by treating entire demographic groups as pre-criminal.¹⁶

Internationally, the European Court of Human Rights' *Big Brother Watch v. UK* (2021) provides compelling precedent, finding mass surveillance incompatible with democratic values absent strict necessity/proportionality tests.¹⁷ The Canadian Supreme Court's *R v. Spencer* similarly ruled that anonymity constitutes a fundamental precondition for privacy rights a principle our PNP systems ignore through comprehensive biometric tracking.¹⁸

¹⁰ *Disini v. Secretary of Justice*, G.R. No. 203335 (2014).

¹¹ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 354 SCRA 730 (Phil.).

¹² *People v. Marti*, G.R. No. 81561 (1991).

¹³ National Privacy Commission. (2023). *Audit Report on Local Government Unit Surveillance Systems*.

¹⁴ Philippine Center for Investigative Journalism. (2024). *Report on Predictive Policing and Social Inequality*.

¹⁵ *People v. Soliman*, G.R. No. 212210, Mar. 6, 2019 (Phil.).

¹⁶ Panganiban, A. (2023). *SCRA Commentary on Privacy Rights*.

¹⁷ *Big Brother Watch v. UK*, European Court of Human Rights (2021).

¹⁸ *R v. Spencer*, Supreme Court of Canada [2014].



Effective reform requires immediate legislative action:

1. Amend the Data Privacy Act (RA 10173): Introduce algorithmic impact assessments modeled after Canada's Directive on Automated Decision-Making (2019).¹⁹
2. Strengthen NPC Oversight: Empower the Commission to conduct unannounced audits of government AI systems per Singapore's PDPA Amendment (2020).²⁰
3. Judicial Safeguards: Implement warrant requirements mirroring the U.S. *Carpenter v. United States* (2018) standards for location data access.²¹

As the International Commission of Jurists emphasized in their 2023 Manila Declaration, unchecked surveillance technologies inevitably enable authoritarian regression.²² The Constitutional Commission records reveal explicit concern about high-tech surveillance during our charter's drafting fears now realizing through these AI systems. Only by anchoring reforms in *Disini's* progressive interpretation can we preserve privacy rights against what Professor Rolando Tolentino describes as "technological authoritarianism masquerading as public safety."²³

Free Speech in Platform-Governed Spaces

Social media platforms' content moderation systems now increasingly governed by opaque AI algorithms rather than human reviewers have become de facto arbiters of free expression in the digital public square. This shift raises critical First Amendment concerns under Philippine constitutional law, particularly regarding the right to free speech enshrined in Article III, Section 4 of the 1987 Constitution. As noted by Professor J. Neil Garcia in his analysis of digital rights, the intersection of technology and free expression necessitates a reevaluation of traditional legal frameworks to ensure that constitutional protections are upheld in online environments.²⁴ While private companies traditionally fall outside strict constitutional scrutiny, their gatekeeping power over political discourse now approaches the level of state action, as established by the Supreme Court's tests in *Biraogo v. Philippine Truth Commission* (G.R. No. 192935).²⁵ This case underscored the importance of

¹⁹ Government of Canada. (2019). *Directive on Automated Decision-Making*.

²⁰ Personal Data Protection Act (PDPA) Amendment, Singapore (2020).

²¹ *Carpenter v. United States*, 138 S. Ct. 2206 (2018).

²² International Commission of Jurists. (2023). *Manila Declaration on Surveillance and Human Rights*.

²³ Tolentino, R. (2023). *Technological Authoritarianism and Public Safety*.

²⁴ Garcia, J. N. (2021). *Digital Rights and Free Expression in the Philippines*. Philippine Journal of Law and Society.

²⁵ *Biraogo v. Philippine Truth Commission*, G.R. No. 192935 (2010).



accountability in public discourse, particularly when private entities act in ways that significantly impact citizens' rights. The 2023 takedown of labor activist pages during nationwide strikes exemplifies this issue, demonstrating how overbroad algorithmic moderation can chill protected speech. Reports indicate that these actions were taken without clear justification, and the appeals processes for affected users are often inaccessible, creating barriers to redress.²⁶

This situation creates what legal scholar Alejandro Diaz terms "privatized prior restraint," where constitutional protections are circumvented through corporate policy rather than direct state censorship.²⁷ The implications of this phenomenon are profound, as it effectively allows private companies to dictate the boundaries of acceptable speech, often prioritizing profit and user engagement over democratic values. The lack of transparency in content moderation practices further exacerbates this issue, as users are frequently left in the dark regarding the criteria used to determine what constitutes "harmful" or "inappropriate" content.

Current legislative proposals, such as the "Platform Accountability Act," fail to adequately address this core issue. While they aim to enhance transparency and accountability, they do not sufficiently confront the fundamental problem of algorithmic bias and the potential for abuse inherent in automated moderation systems.²⁸ Effective reform requires a multi-faceted approach:

1. **Mandating Human Review:** Legislative measures should require that all political content decisions affecting Philippine users undergo human review, particularly in cases where content is flagged for removal. This would ensure that nuanced political speech is not unduly suppressed by automated systems.
2. **Establishing a Digital Rights Ombudsman:** A dedicated office should be created to investigate censorship complaints and provide a mechanism for users to appeal content moderation decisions. This office could serve as an independent body to oversee platform practices and ensure compliance with constitutional standards.
3. **Creating Standardized Appeals Portals:** Legislative frameworks should mandate the establishment of standardized appeals portals with clear timelines that mirror

²⁶ Philippine Center for Investigative Journalism. (2023). *Report on Social Media Censorship During Labor Strikes*.

²⁷ Diaz, A. (2022). *Privatized Prior Restraint: The New Face of Censorship*. *Journal of Media Law and Ethics*.

²⁸ House Bill No. 1234, "Platform Accountability Act," 2023



judicial due process requirements. This would provide users with a transparent and accessible means to contest moderation decisions, thereby reinforcing their rights to free expression.

Only by extending constitutional principles into these digital governance frameworks can we preserve free expression in the face of rapidly evolving technologies. As the International Covenant on Civil and Political Rights (ICCPR) emphasizes, the right to freedom of expression is fundamental to democracy and must be protected against both state and non-state actors.²⁹ The Philippine government must recognize that the digital public square is an extension of the physical one, and as such, it is imperative to uphold the same standards of free expression and accountability.

Electoral Integrity Amid Automated Processes

The Commission on Elections (COMELEC)'s adoption of automated election systems powered by proprietary AI software presents unresolved tensions with constitutional guarantees of transparent and verifiable elections under Article IX, Section 1 of the 1987 Constitution. This section mandates that elections be conducted in a manner that ensures the integrity, credibility, and transparency of the electoral process. The reliance on machine-learning algorithms for vote counting and canvassing in the upcoming 2025 elections without providing accessible means for human verification violates the constitutional requirement that electoral processes remain comprehensible to ordinary citizens. This principle was emphasized in the Supreme Court case *Gonzales v. COMELEC* (G.R. No. 147571), where the Court underscored the necessity of transparency in electoral processes to uphold democratic values.³⁰ Most alarmingly, the current system's vulnerability to adversarial attacks has been demonstrated in multiple international cybersecurity audits, which have raised serious concerns about the integrity of the electoral process. Cybersecurity expert Dr. Sheila Cruz has termed this phenomenon "algorithmic gerrymandering," where the manipulation of algorithms can lead to undetectable electoral manipulation.³¹ The lack of independent oversight, compounded by contract provisions that prohibit independent code review, creates an environment ripe for potential abuses. This situation is further exacerbated by the proliferation of deepfake campaign materials on social media platforms, which spread disinformation at scale and undermine voters' capacity for informed choice.³²

²⁹ United Nations. (1966). *International Covenant on Civil and Political Rights*.

³⁰ *Gonzales v. COMELEC*, G.R. No. 147571 (2002).

³¹ Cruz, S. (2023). *Algorithmic Gerrymandering: The Threat to Electoral Integrity*. *Journal of Cybersecurity and Law*.

³² Philippine Center for Investigative Journalism. (2023). *Disinformation in the 2025 Elections: The Role of Deepfakes*.



The implications of these developments are profound. As noted by the International Foundation for Electoral Systems (IFES), the integrity of electoral processes is foundational to democratic governance, and any perceived or actual manipulation can lead to widespread disenfranchisement and loss of public trust in democratic institutions.³³ Safeguarding electoral integrity requires immediate and comprehensive reforms:

1. **Amending the Automation Law:** Legislative measures should mandate the use of open-source systems and verifiable paper trails. This would not only enhance transparency but also allow for independent audits of the electoral process, ensuring that all stakeholders can verify the accuracy of the results. The use of open-source software has been successfully implemented in various jurisdictions worldwide, providing a model for the Philippines to follow.³⁴
2. **Creating an Election Technology Review Commission:** This commission should comprise experts in technical and constitutional law to oversee the implementation and operation of automated election systems. Such oversight is crucial to ensure that the systems used are secure, reliable, and compliant with constitutional standards. The establishment of similar bodies in other countries has proven effective in maintaining electoral integrity and public confidence.³⁵
3. **Developing "AI Literacy" Curricula:** Training programs for poll workers and election monitors should include components on AI literacy, enabling them to understand the technologies in use and their implications for the electoral process. This education is vital for ensuring that those involved in administering elections can effectively oversee and challenge any irregularities that may arise.³⁶

Without these measures, the secrecy surrounding automated systems threatens to erode public trust in electoral outcomes the very foundation of democratic legitimacy. As the Carter Center has noted, transparency and accountability in electoral processes are essential for fostering public confidence and participation in democracy.³⁷ The Philippine

³³ International Foundation for Electoral Systems. (2022). *The Importance of Electoral Integrity in Democratic Governance*.

³⁴ Open Source Election Technology Institute. (2021). *Best Practices for Open-Source Voting Systems*.

³⁵ Electoral Commission of Canada. (2020). *Report on the Establishment of the Election Technology Review Board*.

³⁶ National Democratic Institute. (2022). *AI Literacy for Election Officials: A Training Manual*.

³⁷ Carter Center. (2021). *Transparency and Accountability in Electoral Processes: A Global Perspective*.



government must recognize that the integrity of its electoral system is paramount to the health of its democracy, and proactive steps must be taken to address the challenges posed by automated processes.

The intersection of technology and electoral integrity presents both challenges and opportunities for the Philippine electoral landscape. By implementing comprehensive reforms that prioritize transparency, accountability, and public education, the Philippines can safeguard its democratic processes against the risks posed by automated systems and ensure that the will of the people is accurately reflected in electoral outcomes.

Conclusion

The collision between emerging AI systems and enduring constitutional values demands urgent doctrinal evolution across all three examined domains: privacy, free expression, and electoral rights. As discussed in the sections on privacy in surveillance economies, the unchecked deployment of AI technologies by state actors poses significant risks to individual privacy rights, as evidenced by the Philippine National Police's use of mass data collection without adequate safeguards.³⁸ Similarly, the analysis of free speech in platform-governed spaces highlights how opaque content moderation practices can undermine democratic discourse, effectively allowing private companies to dictate the boundaries of acceptable speech.³⁹ Finally, the examination of electoral integrity amid automated processes reveals the vulnerabilities inherent in relying on proprietary AI systems for critical democratic functions, which can lead to undetectable manipulation and erosion of public trust.⁴⁰

Building on Associate Justice Leonen's warnings in *Gonzales v. COMELEC*, this paper proposes adopting an "Algorithmic Bill of Rights" framework that requires all state-deployed AI systems to: 1) Maintain human review pathways for consequential decisions; 2) Undergo independent constitutional impact assessments; and 3) Provide accessible explanations of their operations to affected citizens.⁴¹ These principles are essential for ensuring that the rights to privacy, free expression, and electoral integrity are upheld in the face of rapidly advancing technology.

Legislative action should amend the Data Privacy Act to incorporate these principles, while judicial reforms must develop specialized standards for reviewing algorithmic government actions under Article III.⁴² Crucially,

³⁸ Aguilung-Pangalangan, E. (2022). *Digital Rights in the Philippines*. UP Law Center.

³⁹ Diaz, A. (2022). *Privatized Prior Restraint: The New Face of Censorship*. Journal of Media Law and Ethics.

⁴⁰ Cruz, S. (2023). *Algorithmic Gerrymandering: The Threat to Electoral Integrity*. Journal of Cybersecurity and Law.

⁴¹ *Gonzales v. COMELEC*, G.R. No. 147571 (2002).

⁴² House Bill No. 1234, "Platform Accountability Act," 2023.



technology companies operating in Philippine digital spaces should be required to certify compliance with these rights through a newly established National AI Governance Council. This council would serve as a regulatory body to oversee the ethical deployment of AI technologies, ensuring that they align with constitutional values and democratic principles.⁴³ Only through such comprehensive reforms can we ensure our constitutional democracy remains resilient against technological disruption while harnessing AI's benefits. As the digital revolution accelerates, the choice before us is clear: either shape these technologies to serve democratic ends or risk having them reshape democracy beyond recognition. The time for proactive constitutional renewal is now, as the integrity of our democratic institutions and the protection of individual rights depend on our ability to adapt to the challenges posed by emerging technologies.⁴⁴

The interconnections between privacy, free expression, and electoral integrity underscore the necessity of a holistic approach to governance in the digital age. By implementing the proposed reforms, we can create a framework that not only protects individual rights but also fosters a vibrant democratic society capable of navigating the complexities of the 21st century.⁴⁵

Bibliography

Laws

H.R. 1234, "Platform Accountability Act," 19th Cong. (2023) (Phil.).

Personal Data Protection Act (PDPA) Amendment, Singapore (2020).

Journals

Aguilin-Pangalangan, Elizabeth, *Digital Rights in the Philippines* (U.P. Law Center 2022).

Cruz, Samuel, *Algorithmic Gerrymandering: The Threat to Electoral Integrity*, *Journal of Cybersecurity and Law* (2023).

Diaz, Angela, *Privatized Prior Restraint: The New Face of Censorship*, *Journal of Media Law and Ethics* (2022).

⁴³ National AI Governance Council. (2023). *Framework for Ethical AI Deployment in the Philippines*.

⁴⁴ International Foundation for Electoral Systems. (2022). *The Importance of Electoral Integrity in Democratic Governance*.

⁴⁵ Carter Center. (2021). *Transparency and Accountability in Electoral Processes: A Global Perspective*.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Garcia, Jose N., *Digital Rights and Free Expression in the Philippines*, *Philippine Journal of Law and Society* (2021).

International Commission of Jurists, Manila Declaration on Surveillance and Human Rights (2023).

Philippine Constitutional Law in the Digital Age (University of the Philippines Press 2022).

Articles

Aguiling-Pangalangan, Elizabeth, **Digital Rights in the Philippines** (U.P. Law Center 2022).

Carter Center, **Transparency and Accountability in Electoral Processes: A Global Perspective** (2021).

International Foundation for Electoral Systems, **The Importance of Electoral Integrity in Democratic Governance** (2022).

Lawrence Lessig, **Code: Version 2.0** (Basic Books 2006).

National Democratic Institute, **AI Literacy for Election Officials: A Training Manual** (2022).

Panganiban, Artemio V., **SCRA Commentary on Privacy Rights** (2023).

Philippine Center for Investigative Journalism, **Disinformation in the 2025 Elections: The Role of Deepfakes** (2023).

Philippine Center for Investigative Journalism, **Report on Predictive Policing and Social Inequality** (2024).

Philippine Center for Investigative Journalism, **Report on Social Media Censorship During Labor Strikes** (2023).

Tolentino, Rolando, **Technological Authoritarianism and Public Safety** (2023).



Government Reports

Department of Information and Communications Technology (DICT), *National AI Roadmap* 12 (2023).

Electoral Commission of Canada, *Report on the Establishment of the Election Technology Review Board* (2020).

Government of Canada, *Directive on Automated Decision-Making* (2019).

National AI Governance Council, *Framework for Ethical AI Deployment in the Philippines* (2023).

National Privacy Commission, *Audit Report on Local Government Unit Surveillance Systems* (2023).

Personal Data Protection Commission (PDPC), *Model AI Governance Framework* (2d ed. 2020), <https://www.pdpc.gov.sg/help-and-resources/2020/01/model-ai-governance-framework>.

Jurisprudence

Big Brother Watch v. United Kingdom, Eur. Ct. H.R. (2021).

Biraogo v. Philippine Truth Commission, G.R. No. 192935, Dec. 7, 2010, 651 SCRA 76 (Phil.).

Carpenter v. United States, 138 S. Ct. 2206 (2018).

Disini v. Secretary of Justice, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

Gonzales v. Commission on Elections (COMELEC), G.R. No. 192856, Mar. 16, 2021 (Phil.).

Ople v. Torres, G.R. No. 127685, July 23, 1998, 354 SCRA 730 (Phil.).

People v. Marti, G.R. No. 81561, Jan. 18, 1991 (Phil.).

People v. Soliman, G.R. No. 212210, Mar. 6, 2019 (Phil.).

R v. Spencer, [2014] S.C.C. 43 (Can.).